

		as it did not constitute a separate, independent act of service.].) Because service of the discovery was defective, Defendant was justified in not timely responding to the discovery. Ultimately, Defendant provided responses to the discovery on August 6, 2026, and waived the defective service. Thus, the motion to compel responses to the discovery at issue is moot. Plaintiff contends that that the motion is not moot with respect to sanctions. The Code provides that the court shall impose monetary sanctions against any party or attorney who unsuccessfully opposes a motion to compel unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, 2031.300, 2033.280.) In this case, the Court finds Defendant was substantially justified in not providing timely responses due to the defective service. Accordingly, the motions are DENIED in their entirety, including as to sanctions. Moving Party to give notice.
5.	Coronado vs. Sub-zero Excavating, Incorporated 25-01472342	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories 3. Motion to Compel Production 4. Motion to Compel Response to Requests for Admissions 5. Case Management Conference <u>Motion to Compel Responses to Form Interrogatories</u> Defendant Sub-Zero Excavating, Inc.'s (Sub-Zero) motion to compel responses to its first set of form interrogatories is CONTINUED to October 5, 2026, at 1:30 p.m. in Department CM02 in Costa Mesa. Sub-Zero is ORDERED to file a copy of the notice of motion and motion to compel responses to its first set of form interrogatories, before August 31, 2026. At this time, a copy of the motion does not appear in the record. It appears Sub-Zero may have inadvertently filed a second, duplicate copy of its counsel's supporting declaration (see ROA Nos. 112, 125) instead of the subject notice of motion and motion.

		<u>Motions to Compel Responses to Special interrogatories and Requests for Production, and Motion to Deem Matters Admitted</u> Defendant Sub-Zero Excavating, Inc.'s motions to compel responses to its first sets of special interrogatories and requests for production, and to deem the matters admitted in its first set of requests for admission, are DENIED AS MOOT to the extent they seek an order compelling responses or deeming matters admitted. Plaintiff Alberto Palomera Coronado served verified responses to the requests for admission roughly 1.5 hours after these motions were filed (see Hanassab Decl. ¶¶ 11-12, Ex. A [email serving the responses at 3:51 p.m. on 4/7/26]), and served verified responses to the special interrogatories and requests for production on 8/10/26. (<i>Id.</i> ¶ 20, Ex. C.) Sanctions remain at issue. (Cal. Rules of Court, rule 3.1348(a).) Sanctions are GRANTED in the total amount of \$4,980 (or \$1,660 per motion) against plaintiff only, payable within 30 days of notice. (See Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c), 2033.280, subd. (c).) The Case Management Conference is CONTINUED to January 14, 2027, at 9:30 a.m. in Department C12. Defendant Sub-Zero shall give notice of all of the above.
6.	Beijing Luode Property Management Co., Ltd. vs. Qin 26-01542885	1. Motion for Attorney Fees 2. Motion to Dismiss
7.	Tran vs. Ali Sadeghi M.D. Inc. 25-01509640	Motion to Enforce Settlement Plaintiff Hannah Khanh Tran's motion to enforce settlement is GRANTED, in the amount of \$126.04 in unpaid interest. (Code Civ. Proc., § 664.6 [authorizing motion]; Ex. A to moving papers, §§ 2, 15.) Moving party is also granted \$2,910.00 in fees and costs. (<i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1361 [fees/costs authorized if provided for in settlement agreement]; Ex. A to moving papers, § 15.) Moving party has shown that one of the two initial payments due, in the amount of \$20,000.00, was not paid by its initial due date, nor by